

Transcript of Call with Glynis Zavarelli – September 19, 2025

Audio file

[2025.09.19 Phone Call with Glynis Zavarelli re Certificate of Conference and accommodations.m4a](#)

Transcript

00:00:00 Glynis Zavarelli

This is Glynis.

00:00:01 Kathryn Copeland

Oh, hi, Glynis. This is Katie Copeland. I just got your voicemail about the certificate of conference and I was wondering if you're going to set it for hearing like through the court so I'll get notice.

00:00:16 Glynis Zavarelli

Of course, yeah.

00:00:19 Kathryn Copeland

Because I've I've never like. Interfered with the remediation getting done, I've just said, "hey, we got to do it right through TDLR," like get approvals and do proper mold remediation that's legal.

00:00:36 Glynis Zavarelli

So can I mark that I was able to confer with you and you're not in an agreement with having an injunction entered against you?

00:00:44 Kathryn Copeland

Correct.

00:00:46 Glynis Zavarelli

Okay, yes. And then we'll get it set for hearing as soon as possible. I also left a message for Mr. Douglas on both phones that I have for him, the one with the bar, which I don't think really even where he works anymore, but regardless, it's still showing on the bar and then

on the one that's on his letterhead and I've just left him a message that said basically the same thing that.

Well, the message for the text on the Texas bar related number. I just said I'm calling to talk to him. The other one that I knew to be a number fully associated with him. I left a message similar to what I just left for you.

00:01:19 Kathryn Copeland

So you know that TDLR has like moved the case to the prosecutor, right? So it's not me preventing things from going forward.

00:01:33 Glynis Zavarelli

I mean, I I'm I'm I'm not aware of TDLR stopping our remediation work that we've got scheduled at all Miss Copeland. They've not done anything like that.

00:01:47 Kathryn Copeland

So yeah, well, I I don't know if I mean. Has there been a new mold assessment?

00:01:57 Glynis Zavarelli

There was.

00:01:59 Kathryn Copeland

I know that you sent over a couple of names at one point.

00:02:08 Glynis Zavarelli

Yes, there was a new mold assessment done and that, a new mold protocol company put together a protocol. That information was all provided to the TDLR and provided timely.

00:02:24 Kathryn Copeland

I was told that, when I asked Ida Palmer, the investigator, about it, she said she had not received anything new because I wanted to get a copy of the mold assessment report and the remediation protocol to make sure it included all areas that are affected and she said she hadn't received anything and that it had been moved to the prosecution department.

00:02:55 Glynis Zavarelli

Yeah, I mean, I can't speak obviously for Ms. Parmer and how their offices work, Ms. Copeland, but I do know that the folks that Weinstein hired to do the assessment, prepare the protocol, and then get the remediation started have all done what they're supposed to do with TDLR.

Like I said, I don't know what, I can't speak for Ms. Parmer and what her division of TDLR would do with respect to that because that's the investigation division. So I think they have separate roles, but yeah, we're ready to start it.

00:03:28 Kathryn Copeland

I think I'm entitled to a copy of that assessment report, though, and the remediation protocol.

00:03:42 Glynis Zavarelli

Okay, I don't know that you actually are entitled to a copy of that, but under any particular statute or requirement, but I will talk to Weinstein about providing that to you. Okay. It'll come from me.

So I'll try to get in touch with them and see if they're okay with me sending that your way and like I said, with respect to any hearing that gets set, of course you would get notice and I'll give it to Mr. Douglas too. I don't know that he's going to be assisting on this, but I'm not sure.

00:04:12 Kathryn Copeland

Kind of depends on how things are going.

00:04:17 Glynis Zavarelli

Yeah, I mean my intent though, Miss Copeland was to let him know about it too, just in case, right?

00:04:21 Kathryn Copeland

Yeah, of course.

00:04:23 Glynis Zavarelli

And so yeah.

00:04:23 Kathryn Copeland

I was going to ask ohh about. So where, I mean, where am I going to sleep tonight? Because I've just been getting sicker and sicker. Like even right now I'm sitting outside in the common space at the apartment complex because it's the only place. I have that I can be.

00:04:44 Glynis Zavarelli

Yeah, the only hotel that I'm aware of that Weinstein has approved is that Holiday Inn Express in Fort Worth.

So I will. I mean, did you see?

00:04:55 Kathryn Copeland

Did you see my e-mail this morning like explaining how it's between a service road and two busy roads that intersect so that would, because of my cognitive problems and my balance problems, that would like prevent me from being able to even cross the street to go get food or something.

So that's why I was hoping we could consider some of these other options downtown that are actually, because that, I don't know if you realize that Holiday Inn, it says downtown, but it's actually outside the edges of downtown by all this, you know, traffic. Whereas a place that's truly downtown would be more pedestrian friendly.

00:05:50 Glynis Zavarelli

Yeah, I have not seen that, but I will look for it and then I'll communicate with Weinstein this afternoon and I will e-mail you back.

00:05:58 Kathryn Copeland

Okay, thank you.

00:06:00 Glynis Zavarelli

And I guess you're still at the apartment.

00:06:02 Kathryn Copeland

Yeah.

00:06:06 Glynis Zavarelli

Okay.

00:06:08 Kathryn Copeland

I know you had said that work was going to start on the 22nd, but that's why I was confused and sent the e-mail to TDLR because I thought you had to have the protocol on file at least five business days in advance and I hadn't seen it, so.

00:06:23 Glynis Zavarelli

Well, like I said, I mean, I'm obviously not the most people doing this work. I'm not a TDLR licensed person, but it's my understanding they've complied with all the deadlines that are required to be able to start on the 22nd and that's what we would like to be able to have happen so that we can get you back into that apartment as soon as possible.

00:06:43 Kathryn Copeland

Do you know if that includes the area where all the black mold is in the front hallway because that was excluded on the previous protocol.

00:06:57 Glynis Zavarelli

Yeah, I don't. I haven't seen your protocol. The updated protocol. I don't know that I ever saw the original protocol, to be honest with you, I can't remember now, but. I haven't seen the updated one that's been done. I can't answer that because I don't, I just don't have the documents. I think you've now asked me for the assessment report and the protocol, right? You wanted both of those.

00:07:18 Kathryn Copeland

Yeah, the assessment and the protocol. And mostly I just want to make sure to like it addresses, I don't know how they decontaminate property, but I know that's something that can be done and that would be part of a protocol to make sure it's all three areas of mold and all, affected property be decontaminated.

And, I truly do want to reach a resolution and I think the smartest thing would be for let's just get my stuff moved out and like into a storage somewhere so that y'all can do your work, you know, without any of my stuff in your way and I don't have to worry about any of my stuff getting damaged or contaminated.

But I just need to have those conversations and I can't always communicate like right now I'm doing well, but sometimes I have a lot of trouble getting words to my mouth. Like if that makes sense.

00:08:31 Glynis Zavarelli

So one, I think obviously the remediation we need to get figured out and taken care of and all that, and that's what this temporary injunction deal was about that conference tried to, did this conference for you on.

But you brought up something separate, and what I want you to know is this, regardless of getting this apartment remediated, which we need to do and we need to get you back in it, we do appreciate that we need to get resolution to some of the other claims that you made.

So I want you to know that it's still a goal of mine, and I understand your comments right now about your guilty when you are or not really able to have those kinds of conversations.

I am similarly situated. I think the last several times you've sent any kind of involved e-mail or letters, I've been out of town, in court all day long, in depositions all day, so I'm not frequently in my office to even get information like this and be able to respond quickly. So that is the reason, Ms. Copeland, I suggested back on August 26th that you and Mr. Douglas and I and somebody from Weinstein, that we use a mediator and we will pay for your mediation fee.

We're not even asking you to do that. But let's get a mediator involved that we can all sit down on a time that we've organized and scheduled for so nobody's caught off guard and nobody is rush for time or whatever, because they have to go somewhere else that we can sit down and really have the discussions that we need to have to truly get all of this resolved. Because that's been my goal since.

00:09:57 Kathryn Copeland

Yeah, but I don't. I don't think they are even like close to realizing how much damages this is going to be, and I don't think they're going to send you with the authority to settle this for what it needs to settle for. And even then, like it just seems disingenuous to pay for a mediator, but not pay for like food per diem.

You know, it's just like, how can you be good faith on one hand, but then like knowingly making me stay in a toxic unit on the other hand?

Because even if I wanted to take the Holiday Inn thing, I don't have any money to get there and I don't have anyone to help me with all this medical stuff I have to schlep around.

And, and the reason, one of the other reasons that I haven't gone to the Holiday Inn is because I think when we do have a conversation about like where, what my needs are, whatever, I'll end up having to move again. And it's just really hard on me every time I have to move, so I didn't want to go there just to leave in a few days.

00:11:19 Glynis Zavarelli

Well, I will comment on the thing about your concern regarding whatever authority I would have that kind of thing. One, appreciate this please this wouldn't be a mediation where it's just me showing up with Weinstein, the insurance carrier will be showing up to this too and so forth. Just so you know.

And I know I looked you up on... the Internet a while back, and I know you're a lawyer, I know you're not practicing right now, but I think I found some stuff that said that you used to mediate cases.

00:11:49 Kathryn Copeland

Yeah.

00:11:49 Glynis Zavarelli

That you were a mediator.

00:11:52 Kathryn Copeland

I got fourth place in the international mediation competition, so I'm a fan of mediation, but I'm not a fan of it being used to really just obtain information to be used against me. I think that's what was going to happen.

00:12:09 Glynis Zavarelli

Okay, so that brings up the next point then. And now that you're explaining this to me this way, I'm hearing your concern. I've been asking for information and documents, et cetera, that I know this particular insurance company needs, Ms. Copeland, because I've worked up for them for probably two decades. I know the kinds of information they look for.

I know the kinds of things they need to be able to review and evaluate to get reasonable authority on something and not just come in with nothing. It's easy to come in with nothing, right? It's easy to ask for the sun of the moon and not really prove anything. But that's not what mediation is. Since you are a mediator, you have been a mediator. I know you understand what I've just said and how the practicality of each side needing to have the information that they need to a point where they can do a truly insightful and fair evaluation and nobody's caught off guard at mediation, well here's this, you didn't consider this, well that's because we didn't have it.

I mean, I will say, you don't know me and I don't know you, but I don't ever go to any mediation without feeling like my client and the carrier are prepared and that they've done a good job reviewing everything to put a value on something because it wastes my time the opposing parties and everybody's money and in this case it was just their money because they're not going to ask you to pay for anything on mediation right but I mean so but you're you you've just now identified for me the concern that you're just going to this is what I'm hearing you say Ms. Copeland you're going to give this information and rather than use it to actually get to a point where we're resolving this monetarily with you we're just going to use

it as basically ammunition against you these are my words not yours but that's how it sounds that that's what you're worried about?

00:13:55 Kathryn Copeland

It's one of my concerns that that it's not, you know, it just really doesn't seem like. And maybe it's hard to explain the crossover between that and the accommodations right now, but like if I don't even have a safe place to sleep and eat, how could I possibly agree to going into a mediation where, like, I am under, I'm basically under duress because I'm stuck in this situation.

So, like, it's almost like we have to solve one before we can get to the other, but I want to get to the other as fast as possible. But I have to get stable first, you know, yeah.

00:14:51 Glynis Zavarelli

Yeah, so I I guess I'm not. I mean, I appreciate everything you've just said because it does at least give me some information to understand a perspective that you have. I just feel like we all my perspective as the attorney for the defendant on this is just that we need to get all the things resolved at once and get this done as soon as possible.

00:15:11 Kathryn Copeland

Frankly, well, that's true, but but either way, they have a duty to, you know, put me in a safe place right now. So, but like that duty remains either way.

00:15:24 Glynis Zavarelli

So yeah, and I guess Miss Copeland, you and I can just agree to disagree about what Weinstein's obligations or duties are. So and I don't think that we really need to have a debate about that right now. I do need though to. I do need to get our stuff filed with the right certificate of conference on there. I do need to get with one sign and see what they can do as far as lodging goes for tonight and one that has a permanent attached to it, not bouncing around or whatever, which was their intent in any event.

They would have kept you with the nobleman if the nobleman could have continued to have a room for you. You know, and that was one of the places that...

00:16:07 Kathryn Copeland

From what I saw, that Kodi, the property manager, had called the front desk and everyone was making a stink about this incidental fee which they had been carrying from week to week without a problem until that phone call and until you got involved and then suddenly, if you can't pay this, we're not going to extend your room. And then even when I could pay

it, they weren't going to extend the room and which I couldn't pay it anyway, but like hypothetically. So that all kind of fell apart. But there I was looking at some other hotel options like It just takes a long time for me to have to try to figure out like, okay, does this have that? Does this have this? You know, what am I going to need? How am I going to make this practically happen? But I was looking at like the Worthington downtown because that's in a safer like pedestrian area and less expensive.

00:17:24 Glynis Zavarelli

Do you, do you, I'm sorry to interrupt you, Ms. Copeland, do you know what the room rate for the Worthington Downtown is?

00:17:32 Kathryn Copeland

No, but I can put it together real fast and e-mail it.

00:17:38 Glynis Zavarelli

I mean, I'm googling them right now, just so you know, as I'm off to you. I think what Weinstein was paying as a nobleman was around 250, 260, something like that, is my understanding. I know I had asked you, and you said you weren't able to get that room right, and I guess that might have been because Weinstein was paying for it. I don't understand that situation logically that presented for you that way. But my memory was, because you know that night you called me, when the police were there, I called them between our two phone calls.

And I said, if I could get one thing to pay the remaining incidental balance, whatever that was, for food or whatever it was, could you guys please just continue to let her have a room there? And they said no, just so you know.

00:18:31 Kathryn Copeland

I appreciate you doing that.

00:18:33 Glynis Zavarelli

Well, and what's your room rate? Because you at that point had continued to say to me, I don't even know what it is. So I said, is it around 250, 260? And even the gentleman on the phone said, well, I don't know specifically what her room rate has been every night. I'd have to look all that up. But yeah, he said, I'd say it's around 250, 260. I said, oh, OK. So I mean, that's as far as-- are you still there?

00:18:57 Kathryn Copeland

Yes, I am.

00:18:59 Glynis Zavarelli

That's as far as that got. But let me figure out what-- Let me figure out what the Worthington room rate would be.

00:19:06 Kathryn Copeland

Yeah.

00:19:07 Glynis Zavarelli

All right.

00:19:09 Kathryn Copeland

The other, the good thing in my life is I've been in this horrible custody fight and some good things just happened that make me think that my girls could be with me very, very soon. And so, you know, I was willing to have one room before, but because I had one room, I wasn't able to have like my caregiver support, but I kept thinking, oh, this is just temporary, it'll be over soon, but I have to have a place for my girls to come back to, so I'd love to have a caveat on wherever I end up, at least adding a room when my girls are back with me.

00:19:56 Glynis Zavarelli

So I'm probably not going to be able to get them to two rooms.

00:20:00 Kathryn Copeland

I mean, not today, two rooms, but, but when, because like I have a two-bedroom apartment now, so.

00:20:08 Glynis Zavarelli

Yeah, I, let me, well, okay, so for today I'm going to look at what the room rate for one room, and I'm going to ask Weinstein about that. And then I, I'm making, I'm making zero representations about two rooms, just so because I don't receive that would be approved, but you know what, I haven't crossed that bridge yet, so. And also, I mean.

00:20:34 Kathryn Copeland

Alternatively, I could be looking at Airbnbs instead, which would, you know, cover like my needs for my kids and the dogs better. But, you know, I only have so much like brain power per day, so I don't know which direction to use it. Whether it's Airbnbs or finding a permanent place where we can just move or, you know, there's a lot of things going on, but I think they could be solved pretty easily. Like, "hey, let's get Katie's stuff in storage." That's

done. And “hey, let's, like, find a temporary place to stay while she looks for a permanent place to stay.” And that's done.

00:21:18 Glynis Zavarelli

I mean, I think at this point, again, everything you're saying to me, I clearly haven't had a chance now to talk to Weinstein about right now, right? So I think at this point, you know, Weinstein, I know that they've done the lodging and the pet boarding. I'm assuming they're inclined to still do lodging and pet boarding for you and I'll look at this Worthington room rate and see if that's within that 250 or so price for you. And I'll get you an e-mail earlier.

00:21:43 Kathryn Copeland

It looks like it is, just from what I'm seeing, yeah.

00:21:48 Glynis Zavarelli

So I'll get you an e-mail over if they will approve that, Ms. Copeland. Yeah.

00:21:51 Kathryn Copeland

But I don't think they have kitchenettes there. So, you know, that's where I might have to still, like, insist on some kind of food situation because that, I went several days hungry at both hotels because I couldn't afford to eat and I couldn't take care of myself, so.

00:22:20 Glynis Zavarelli

Well, I don't, they've not agreed to pay you a per diem to this point, and I don't anticipate that's going to change. So even if they wouldn't pay the per diem, and I expect they won't Ms. Copeland, do you still want to check on the Worthington Hotel?

00:22:35 Kathryn Copeland

I don't know, because like, you know, at least the nobleman had a kitchenette, you know?

00:22:43 Glynis Zavarelli

I, I, that was, yeah, I do remember that. But I mean, I guess I'm, I am willing to check on the Worthington and check with the people at Weinstein about approving that at that around 250 or so price point and getting that set up for you.

But I mean, to be super forthcoming, I don't know where this sort of takes me if that's not something you need to now want me to do anymore.

00:23:08 Kathryn Copeland

Well, you know, I think if you could make this proposal to them, I think it would be fair to do the Worthington and the food per diem, and that would be the compromise. And so if you can pitch that to them, I'd appreciate it. And we'll see what they say.

00:23:27 Glynis Zavarelli

Yeah, Ms. Copeland, I'm absolutely happy, willing, and able to telling them this is what you have requested. But at the end of the day, this is their decision, not mine. If I come back to you with only, well, they'll do the Worthington and they'll make that reservation now and they'll make it through the end of this remediation project.

If they do that and they agree to that and I e-mail you that but they won't agree to per diem, I guess the dilemma that I just need to know about is are you going to go ahead and check into the Worthington because they did keep that reservation at the one hotel for several days and they lost money on that.

00:24:08 Kathryn Copeland

I don't know why they paid for stuff without talking to me. Like, I'm not that hard to talk to.

00:24:12 Glynis Zavarelli

But -- So but the -- But.

00:24:17 Kathryn Copeland

Yeah, I can't really tell you where I'll be like an hour from now as far as if they say no, what will I say? Like, let's just see what they say to my proposal and see what happens, you know?

00:24:32 Glynis Zavarelli

Yeah, and then I guess what I'm just going to kind of give you sort of the foresight on this. That's what I'll do, and if they come back and they say yes to the Worthington and they'll make a room, blah, blah, blah, reservation for you, but no as a per diem, and I e-mail that to you, then there will be a time that you need to confirm what you're doing with the other. And I will leave at the time that I tell you in the e-mail I'm leaving. I am. I have some obligations at home tonight that I delay and so so I will not be around.

00:25:05 Kathryn Copeland

I guess I'll look at Airbnb options as a backup plan while you're talking to them about that proposal, so.

00:25:13 Glynis Zavarelli

I mean, I I guess you can look at anything you feel comfortable looking at, but if it's more than 250 or so, I don't expect that that will be doable.

00:25:24 Glynis Zavarelli

I don't know what Airbnbs cost, frankly I have no idea. Yeah. So anyways, but-- I.

00:25:30 Kathryn Copeland

Wish I knew like what parameters, you know, or what law they're following because like all the law I'm finding makes it seem like I'm supposed to have a comparable, you know, place and one that meets my needs and.

00:25:50 Glynis Zavarelli

Well, you know, under the property code, Miss Copeland, you had three choices for your remedies at the beginning of all of this. You can terminate it. And they said you can terminate. No, no bad. We won't charge you nothing and you didn't want to.

They offered to move you into another apartment. That didn't work out.

00:26:07 Kathryn Copeland

No, they didn't. They never offered that. In fact, I asked about it and I even called over to the Clearfork version and stuff, but.

00:26:20 Glynis Zavarelli

I've got emails that they are sending back and forth with you on that. But anyway, then the whole hotel situation came up.

00:26:27 Kathryn Copeland

I had to say no to the breaking the lease and just leaving because I didn't have any money to leave. I didn't have money for, you know, like to get set up somewhere. And because I've been so sick, like I'm not going to get approved for anywhere without a bunch of like prepaid rent. So.

00:26:49 Glynis Zavarelli

Yeah, and let me just back up so I can kind of tell you, I think you're asking me what are they basing their decisions on. And then you know the other remedies you had were to go ahead and get it fixed and then deduct that from your rent. You didn't do that, that's fine. Or sue them to get them to prepare the place and that wasn't necessary because they were in the process of trying to get biotechs to do protocols and all that stuff. So the reality is the Texas Property Code doesn't provide any remedy for you to obtain alternative lodging. And I

represented a lot of apartment complexes, Ms. Copeland, and I've never had any of them do this.

Even with that big flood, the big freeze we had a few years ago in Texas, I had a complex where every pipe in the whole place almost busted, and they couldn't keep their people there. All those people went and got hotels, and that was what they did. I think they gave them some rent relief for that, but they didn't pay for their lodging and then excused their rent also. That wasn't what happened. In this case, they've been paying for your lodging, your dog's lodging, and you haven't paid rent in two months. So I think they're trying to be accommodating to you in that regard, and they're trying to work with you, and I think that they are, but there was something I was going to ask you though, oh hey, I know what I was going to ask you. You paid rent through July.

00:28:09 Kathryn Copeland

Yeah.

00:28:09 Glynis Zavarelli

So I guess what... So, I mean, you were able to pay rent in July and June, and I haven't gone back and looked at your whole rent history, but I assume you always paid your rent, and I'm assuming that.

00:28:20 Kathryn Copeland

Yeah, I mean, I had help from friends and stuff, but...

00:28:24 Glynis Zavarelli

Okay, so you were not actually particularly, specifically always the one to, I guess, make the rent payment for you, other people now. Okay. And have those friends just become non-existent or did they move or something?

00:28:38 Kathryn Copeland

Well, it was like a guy I was dating that I'm not dating and, you know.

00:28:43 Glynis Zavarelli

Gotcha.

00:28:44 Kathryn Copeland

Okay.

00:28:44 Glynis Zavarelli

Gotcha.

00:28:45 Kathryn Copeland

So I, yeah, I want to get on my feet somewhere that I don't have to move again or my dogs have a big yard they can run around in because I went and visited them the other day and my little dog is like fat now. It's weird. So he needs to run around. And then for my girls, you know, to not have to move around again.

And I don't know, you know, I don't think I can jump from A to Z to get a permanent place, but last night I was even looking up, like, what if we could just agree to just move me into this rental property permanently somewhere else, but even then it would still take prepaid rent, but for the price of the hotels and stuff, that might shake itself out, you know, but I'm willing to be creative. But I assume that what's going to have to happen is some temporary lodgings right now while we figure out the permanent thing.

00:29:49 Glynis Zavarelli

Yeah, I think the I think the goal frankly, from Weinstein's perspective, is to get you into a hotel and keep you there. And I think that was what they were doing with the Holiday Inn, which you rejected several times, I understand that. But in any event, now we'll look at the Worthington.

And to get you back in your apartment, I know your lease ends October 26th or something like that, but to get you back into your apartment and finish your lease there and then you'll move on to something different. But, you know, the goal wasn't to keep you jumping from hotel to hotel at different times or any of that remediation was going on, but as long.

00:30:29 Kathryn Copeland

As they were keeping that major third out of the remediation protocol, I wouldn't be able to move back in because it would still have that front third of black mold by the front door, which is what started all of this.

So that's why it was like, "Those are never going to work anyway, because unless they're getting rid of all the molds, it doesn't get rid of all the mold," you know?

00:30:55 Glynis Zavarelli

And you're talking about that area on the inside of your apartment by the front door and like the crease of the wall.

00:31:01 Kathryn Copeland

Yes.

00:31:01 Glynis Zavarelli

For the walls come together, that line that goes up.

00:31:04 Kathryn Copeland

Yes.

00:31:04 Glynis Zavarelli

The line of stuff. Okay, yeah, I know what you're talking about.

00:31:07 Kathryn Copeland

And I think it's probably going to be very difficult and structural, like to get in there and figure out. It might be more complicated than just drywall. I don't know.

00:31:17 Glynis Zavarelli

But I don't either but I let me let me let you go because the more the time passes the more the time passes so let me let me pick up the Worthington let me get with Weinstein on that and then get you an e-mail over to you and then like I said I have to leave for a little bit this afternoon but I'll be back in and then I'm gonna have to leave by 5:30 Miss Copeland but anyways all right let me let you go let me work on the Worthington and I'll e-mail you, okay?

00:31:47 Kathryn Copeland

Okay, thanks.